

The Rajasthan Land Revenue (Allotment, Conversion & Regularisation of Agricultural Land for Residential, Commercial and Public Utility Purposes in Urban Areas) Rules, 1981

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The Rajasthan Land Revenue (Allotment, Conversion & Regularisation of Agricultural Land for Residential, Commercial and Public Utility Purposes in Urban Areas) Rules, 1981

RAJASTHAN

India

The Rajasthan Land Revenue (Allotment, Conversion & Regularisation of Agricultural Land for Residential, Commercial and Public Utility Purposes in Urban Areas) Rules, 1981

Rule

THE-RAJASTHAN-LAND-REVENUE-ALLOTMENT-CONVERSION-REGULARISATION-OF-AGRICULTURAL-LAND-FOR-RESIDENTIAL-COMMERCIAL-AND-PUBLIC-UTILITY-PURPOSES-IN-URBAN-AREAS-RULES-1981 of 1981

Published on 26 December 1981

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The Rajasthan Land Revenue (Allotment, Conversion & Regularisation of Agricultural Land for Residential, Commercial and Public Utility Purposes in Urban Areas) Rules, 1981

Published vide Notification G.S.R 94, Dated 26-12-1981; published in Rajasthan Gazette Extraordinary Part 4(Ga)(1),

Dated 26-12-81, page 321-340

In exercise of the powers conferred by clause (XI-A) of sub-section (2) of section 261, read with Sections 90-A, 102 and Clauses (a) and (b) of sub-section (1) of section 260 of the Rajasthan Land Revenue Act, 1956 (Rajasthan Act 15 of 1956

), and all other powers enabling it. in this behalf, the State Government hereby makes the following rules for Allotment Conversion and Regularisation of Agricultural Land or Residential and Commercial Purposes in Urban Areas, namely-

1.

Short title and Commencement.

(1)

These rules may be called the Rajasthan Land Revenue (Allotment, Conversion & Regularisation of Agricultural Land for Residential, Commercial [and Public Utility]

[Inserted by G.S.R. 45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998.]

Purposes in Urban Areas) Rules, 1981.

(2)

They shall extend to all agricultural lands through the State which fall within-

(a)

a municipal area.

(b)

master plan area of any town for which master plan has been notified:

(c)

periphery villages of area referred to in clauses (a) or (b) as the case may be, and main

(d)

[a Mandi as defined in clause (9) of condition 2 of the Rajasthan Colonisation (Sale and Allotment of Land in Mandies in the Bhakra and Rajasthan Canal Projects Colony Areas) Conditions, 1973, but not including a Mandi whose jurisdiction is situated in a "Municipal area" or a "Periphery Village" as defined in clauses (h) and (i) of rule 2.]

[Added by G.S.R. 35, Dated 7-8-82; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 7-8-82, page 105-108.]

(3)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires-

(a)

"Authorised Officer" means the Collector of the Revenue District having jurisdiction or any other officer specially empowered by the Government in this behalf, by a notification published in the Official Gazette.

(b)

"Commercial Purpose" means use of any premises for any trade or business [and where use thereof is partly for residential and partly for commercial purpose and application is made simultaneously for both purposes, in such cases the area actually used for commercial purpose shall be treated as commercial purpose and the area used for residential purpose shall be treated as residential purpose]

[Inserted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

and shall also include use any such premises for shops, business, officers, show-rooms, restaurants, banks and godown but shall not include use thereof for cinemas, hotels and petrol pumps as defined in the Rajasthan land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Cinemas. Hotels and for establishment of Petrol Pumps) Rules. 1978:

(c)

"Form" means a form appended to these rules:

(d)

"Government" & "State" means the Government and State of Rajasthan:

(e)

"Land Revenue Act" means the Rajasthan Land Revenue Act, 1956 (Rajasthan Act 15 of 1956

):

(f)

"Lease" means a lease executed under the rules:

(ff)

["Local body" means a Municipality, Municipal Board. Urban Improvement Trust. Jaipur Development Authority or only one local authority as the case may be in whose jurisdiction the land is situated.]

[Inserted by G.S.R. 76. Dated 31-10-83; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 29-12-83. page 265.]

(g)

"Master Plan Area" means the area covered by the Master plan prepared and approved for and Urban area in accordance with the provisions of the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act 35 of 1959) (and the Jaipur Development Authority Act, 1982) [(Rajasthan Act 25 of 1982)]

[Inserted by No G.S.R. 5. Dated 27-4-83; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I). Dated 29-4-83. page 9-10.]

:

(gg)

[Medical facilities shall include medical, hospital, diagnostic centres and Nursing homes.]

[Inserted by G.S.R. 75, Dated 8-10-96; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 16-10-96.]

(h)

"Municipal Area" means any local area for which a Municipal Council or a Municipal Board is constituted under the Rajasthan Municipalities Act, 1939 (Rajasthan Act 38 of 1959) or an Urban Improvement Trust is constituted under the Rajasthan Urban Improvement Act, 1959 (Rajasthan Act 35 of 1959) for the Jaipur Development Authority constituted under the Jaipur Development Authority Act, 1982 (Rajasthan Act 25 of 1982)]

[Inserted by G.S.R. 5. Dated 27-4-83; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I). Dated 29-4-83. page 9-10.]

and shall include a cantonment or a notified area:

(i)

["Periphery Village" means the area of a village situated within the distances indicated below from the urbanisable limit for municipal limit, whichever is further, of the town or

[Amendment by No. G.S.R. 83, Dated 1-10-94; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 20-10-94. page 304(1).]

Category 1 town or city - 5 Km.

Category 2 town or city - 3 Km.

Category 3 town or city - 2 Km.

Category 4 & 5 town or city - 1 Km.]

(ii)

["Public Utility purpose" means use of any premises or open land or play ground for a school, college, hostel, dharmshala, public guest house, religious place, gaushala, public park or any other place of public utility excluding use of medical facilities.]

[Inserted by No. G.S.R.45, Dated July 31, 1998, published in Rajpatra Part IV(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998.]

(j)

"Schedule" means schedule appended to these Rules.

(k)

"Scheduled Caste" means any of the casts, races or tribes or members of or groups within the castes or tribes specified in Part XIV of the Constitution (Schedule Castes) Order. 1950:

(l)

"Scheduled Tribe" means any of the tribes, tribal communities or parts of or groups within the tribes or tribal communities specified in Part XII of the Constitution (Scheduled Tribes) Order, 1950:

(m)

"Society" means a Housing Co-operative Society formed and registered under the Rajasthan Co-operative Societies Act, 1965 (Rajasthan Act 13 of 1965

):

(n)

"Tenancy Act" means the Rajasthan Tenancy Act, 1955 (Rajasthan Act 3 of 1955):

(o)

"Urbanisable Limit" means the limit of the area specified as such in the Master Plan of a town or city in respect of which Master Plan has been notified:

(p)

["Urban Village" means a village situated in Municipal Area, where more than 75% of the inhabitants are engaged in vocations primarily connected with agriculture or animal husbandry or are rural artisans.]

[Added by G.S.R. 76. Dated 31-10-83; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 29-12-83. page 265.]

(2)

Words and expressions not defined in the see rides, but defined the Land Revenue Act and the Tenancy Act shall wherever used in these rules, be construed to have the meanings assigned to them in those Acts.

3.

Purposes for which agricultural land may be permitted to be used.

(1)

Subject to other provisions of these rules, agricultural land may be permitted to be used for-

(a)

construction of a residential house, or

(b)

for any commercial purpose, or [(c) for public utility purpose.]

[Inserted by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998.]

(2)

No agricultural land shall be converted for residential or commercial purpose referred to in sub-rule (1), unless necessary permission from the Authorised Officer has been obtained and lease deed under rule 16 has been executed therefore.

(3)

If any agricultural land (including Government un-occupied agricultural land) has already been used for residential or commercial purpose before the commencement of these rule without permission of the Government in accordance with provisions of sub-section (3) of Section 90-A of the Land Revenue Act such use may on an application be regularised by the Authorised Officer by charging the price of land, conversion charges and penalty as provided of these rules and such development charges, peripheral development charges and compounding and other charges as may be prescribed under any other law or rules applicable:

Provided that the Authorised Officer may also suo-moto, or on the report of Sub-Division Officer/Tehsildar having jurisdiction, take action as provided in these rules.

4.

Restrictions on the use of agricultural land for [Residential, Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998.]

purposes.

- No permission for the use of agricultural land for [Residential. Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part IV(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998]

purpose shall be accorded in the following circumstances, namely -

(a)

If the use to which the land has been put or is proposed to be put does not conform to the land use indicated in the Master Plan of the area and the rules and regulations, of the competent local authority having jurisdiction in the area:

Provided that in any case in which the land use does not conform to the Master Plan if notified or, in other cases, to the rules and bye laws of the competent local authority, regularisation of such use shall not be permitted unless permission to alter the land use has been accorded-

(i)

[in cases of Towns & Cities falling in category I and II of Schedule I and cities of Mount Abu Jaisalmer. Hanumangarh and Chittorgarh by the Town Planning Department of the State Government.]

[Substituted by G.S.R. 104, Dated 24-11-87; published in Rajasthan Gazette Part 4(Ga)(I), Dated 24-12-87. page 395.]

(ii)

in other cases, by the local authority having jurisdiction: and

(b)

In cases in which land has been used for [Residential or Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998]

purpose as are against public policy, or accepted norms of decency and morality, or are a hazard of public health, sanitation or safety, unless each such individual case is considered and approved by a committee constituted by the State Government for any district or area by a notification published in the official gazette

(c)

[x x x]

[Deleted by G.S.R. 5. Dated 4-4-94; published in Rajasthan Gazette Extraordinary Part 4(Ga)(i), Dated 13-4-94, page 7.]

(d)

If the land in question is situated inside a mandi area or within such distance therefrom as is notified under the Rajasthan Colonisation Act 1954 (Act

27 of 1954

). unless prior consent of the Mandi Development Committee having jurisdiction has been obtained.

(e)

[x x x]

[Deleted by G.S.R. 5. Dated 4-4-94; published in Rajasthan Gazette Extraordinary Part 4(Ga)(i), Dated 13-4-94, page 7.]

(f)

[x x x]

[Deleted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

(g)

[x x x]

[Deleted by No. F. 2(8) Revenue/9/90, Dated 3-3-92; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 4-3-92]

5.

Land of which conversion cannot be permitted or regularised.

- Conversion of the following land shall not be permitted to be made, or regularised namely-

(1)

[Land in which the applicant does not have Khatedari rights or the land which has not been purchased by the applicant by registered sale deed:

[Deleted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

Provided that this restriction shall not apply to an applicant who. being an individual or a society or an allottee member of a society, had entered into an agreement to sell in writing with the rightful holder of the land and had obtained possession of the land on or before 23-4-1997 in part performance of such agreement and has performed or is willing to perform the agreement on his or its part and has submitted copy of the agreement to sell certified by a magistrate or in

Notary Public and in the case of a society, also the list of members with their particulars under the signature of secretary of the society to the Authorised Officer up-to 23-5-1997 and has deposited conversion charges in part or in full with the State Government or such Authorised Officer on or before 21-7-97. After 23-4-97, transfer made by way of agreement to sale shall not be recognised.]

(2)

Land which has been allotted for a special non-agricultural purpose, or on special terms, under the Land Revenue Act or the rules framed thereunder: [However, the State Government may for reasons to be recorded permit such conversion.]

[Deleted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

(3)

Land in respect of which acquisition proceedings are pending under the provisions of the Rajasthan Land Acquisition Act 1953 or any other law in force.

(4)

Land in which is situated within the following limits

(a)

[a railway boundary, or [16]

[Substituted by No. G.S.R. 192, Dated 4-1-84; published in Rajasthan Gazette Part \$(C)(I), Dated 23-2-84. page 868.]

metres from the centre of the railway track, whichever, is further, without the prior written consent of the Railway Department],

(b)

within the distances indicated below from the centre lines of the following roads-

(i)

National Highways and State Highway 15 metres.

(ii)

[National Highways and State Highways passing through municipal area except bye-pass and Major District Roads and main city through fares 10 metres.]

[Substituted by No. 6(25) Revenue/4/87/3, Dated 17-9-88.]

(iii)

Other District Roads and main colony roads 7.5 metres.

(iv)

Other roads.....[3 metres]

[Substituted by No. G.S.R. 61, Dated 28-8-82; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 31-8-82. page 169.]

.

(5)

Land coining within the purview of [x x x]

[Deleted by No. F. 2(8) Revenue/9/90 Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

the Rajasthan Imposition of Ceiling on Agricultural Holdings Act, 1973 (Rajasthan Act 11 of 1973) and the Rajasthan Land Reforms and Acquisition of Land Owner's Estates Act, 1963 (Rajasthan Act 11 of 1964).

(6)

Lands forming part of the forest area under the provisions of the Rajasthan Forest Act, 1953 (Rajasthan Act 13 of 1953

).

6.

Application for Permission.

(1)

Any person society or a number a society, who is eligible to apply under these rules, may submit an application alongwith an affidavit in support to his contentions in quadruplicate in Form A' to the authorised Officer having jurisdiction. Before submitting the application, each applicant shall himself assess the amount payable by him towards conversion charges and penalty and in cases involving encroachment and conversion of Government lands, price, in

accordance with the provisions of these rules, and shall deposit the same in the Government Treasury. Every application shall be accompanied by a treasury challan obtained in the above manner in which the self-assessment has been made. Unless an application is accompanied by an affidavit, the treasury challan and the supporting statement, as above, it shall not be deemed to have been validity presented, and shall be returned to the applicant by the authorised Officer.

(2)

In the event of the application being rejected by the authorised Officer, the amount deposited by applicant under sub-rule (1) shall be refunded to him without any interest.

(3)

The applicant shall be given a receipt in the prescribed form.

7.

Register of applications.

- All applications received by the authorised Officer under rule 6 shall be entered in a Register to be kept in Form 'B'.

8.

Scrutiny and Enquiry of Applications.

(1)

Within 7 days of the receipt of the application, the Authorised Officer shall endorse a copy of the same to the Town Planning Department or the local body, as the case may be for their views and recommendations.

(2)

The concerned local body or the Town Planning Department shall communicate their views and recommendations to the Authorised Officer within 40 days from the date of despatch of the application by the Authorised Officer to them.

(3)

If the Authorised Officer does not receive the views and recommendations of the concerned local body or the Town Planning Department within 60 days of the date of receipt of the application in his office he shall convene a meeting of the representatives of the local body or the Town Planning Department as the case may be and thereafter take a final decision in the matter within 90 days from the receipt of the application. In case the representative of the local body or the Town Planning Department does not attend the meeting so convened, it shall be presumed that the concerned local body or the Town Planning Department has no objection to the conversion or regularisation as applied for.

9.

Disposal of Applications.

- Each application submitted under rule 6 to the Authorised Officer shall be examined, and enquired into by him separately. He may either reject the application or pass an order of conversion or regularisation in accordance with these rules:

[Provided that no Order of conversion or regularisation shall be passed by the Authorised Officer in cases where the application relates to agricultural land falling within the municipal area or the periphery village of Mount Abu without prior approval of the State Government.]

[Added by G.S.R. 68, Dated 12-9-90; published in Rajasthan Gazette Part 4(Ga)(I), Dated 27-12-90.]

10.

Conditions of conversion or regularisation.

- Conversion or regularisation of the use of agricultural land for [Residential or Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajasthan Part IV(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998.]

purpose under these rules shall be made in accordance with the following conditions-

(1)

The applicant shall pay to the Government such conversion charges and penalty as are prescribed under these rules, and shall also pay to the local body concerned the prescribed development charges, peripheral development charges, compounding fee and such other charges as may be prescribed by law or by the local body concerned.

(2)

In all cases in which an applicant applies for conversion or regularisation of land he shall be deemed to have surrendered his tenancy rights upon such conversion or regularisation, but with the stipulation that he shall have the right to revert to the original use of the land at any stage subsequently. On such reversion, his status shall be the same as he held before conversion or regularisation, but he will not be entitled to any refund of the amount paid by him for

obtaining the conversion or regularisation.

(3)

[Where Government agricultural land has been encroached upon and converted for a [Residential or Commercial or Public Utility]

[Substituted by G.S.R. (I), Dated 6-4-84; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 12-4-84, page 1&2.]

purpose prior to 20-8-1981. and the case is otherwise found fit for regularisation under these rules, the price of such agricultural land shall be deemed to be equivalent to the conversion charges prescribed, as the case may be, for the land used for residential purposes under sub-rule (4) of rule 11 or for the land used for the commercial purposes under sub-rule (5) of rule 11 of these rules and the price as aforesaid shall be chargeable in addition to the conversion charges and penalty prescribed under these rules.]

[(3-a) Where Government Agricultural land has been encroached upon and converted for a [Residential or Commercial or Public Utility]

[Added by G.S.R. 40. Dated 23-7-87; published in Rajasthan Gazette Part 4(C)(1), Dated 20-8-87. page 167-168.]

purpose after 20-8-81 and upto 30-6-87 and the case is otherwise found fit, for regularisation under these rules, in such case normal conversion charges, penalty and cost of the land equal to 5 times of the normal conversion charges applicable to the type of conversion shall be charged.]

[(3-b) Where Government Agricultural Land has been encroached upon and converted by construction for [Residential or Commercial or Public Utility]

[Inserted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

purpose after 30-6-1987 and upto 23-4-97 and the case is otherwise found fit for regularisation under these rule-, in such cases penalty and cost of the land equal to 15 times of the normal conversion charges applicable to the type of conversion shall be charged.]

(4)

[x x x]

[Deleted by No. F. 2(8) Revenue/9/90, Dated 3-3-92; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 4-3-92.]

11.

Categorisation of towns and rates of conversion charges.

(1)

Municipal towns of the State shall be divided into five categories according to their population and overall importance as specified in Schedule I.

[(1 a) A Mandi shall be deemed to be in category 5. as specified in Schedule I.]

[Added by G.S.R. 35, Dated 7-8-82; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 7-8-82, page 105-108.]

(2)

Each town shall further be divided into zones. Towns in categories No. 1, 2, 3, 4 and 5 shall have 5, 4, 3, 2 and 1 zones respectively.

(3)

The area of each zone in a Municipal town shall be such as may be notified by the State Government in Official Gazette, except that in the case of towns of category 5, the entire Municipal area will constitute one zone:

Provided that the zones already notified under the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land of [Residential or Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998; &]

Purposes in in Urban Areas) Rules, 1978 shall continue to be the zones for purposes of these rules till they are reconstituted or modified.

(4)

[The rate of conversion charges for residential purpose for each zone in a municipal town shall be as shown in column No. 3 of Schedule 111:

Provided that in cases in which the agricultural land has been converted and used by the applicant for residential purpose prior to 20-8-1981 a concessional rate as shown in column No. 3 of schedule II shall be chargeable if the following conditions are fulfilled, namely:-

(i)

The applicant was in physical possession of the land prior to 20-8-81. %

(ii)

The application is filed before the Authorised Officer and the prescribed conversion charges and penalty are deposited in a Government Treasury and the applicant has acquired a clear title in respect of the land upto 31-5-1982.

(iii)

The application is accompanied by a Treasury Challan in proof of the fact that the applicant has deposited the amount of conversion charges and penalty according to these Rules on the basis of his self-assessment, and the amount deposited as a result of self-assessment is not less than eighty percent of the amount assessed by The Authorised Officer under these Rules.

Explanation - If the amount has been deposited in the Treasury upto 31-5-1982 and the application is presented to the Authorised Officer within 30 days of the commencement of the Rajasthan land Revenue (Allotment, Conversion and REgularisation of Agricultural Land for Residential & Commercial Purposes in Urban Areas) (Amendment) Rules, 1984, the application may be deemed to have been validly presented under conditions (ii) and (iii) of the proviso to sub-rule (4) of rule 11 and shall be dealt with accordingly.]

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

(4a)

[The rate of conversion charge or penalty for use of land for public utility purpose shall be 50% to the rate of conversion charge applicable for residential purpose.]

[Inserted by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998]

(5)

The rates of conversion charges for use of land for commercial purposes shall be three times the rates of conversion charges as given in Schedule [III].

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

In all other respects, the provisions of sub-rule (4) of rule 11 shall mutatis mutandis apply, substituting the word 'commercial' for residential'.

(5-a) The rate of conversion charges for installing medical facilities of the following category shall be as follows, namely:

[Inserted by G.S.R. 75, Dated 8-10-96; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 16-10-96.]

Category-A

Charitable institution willing to install at least one advanced diagnostic for curative plant/equipment from within the list approved by the Government of Rajasthan from time to time or provide some medical facility for advanced medical services or super speciality as per the plan approved by the State Government.

25% of the conversion charges applicable for use of land for commercial purposes.

Category-B

Charitable institutions not covered under category A'

50% of the conversion charges applicable for use of land for commercial purpose.

Category-C

Institution willing to set up speciality hospitals in specialities approved by the Government for a

particular area

50% of the conversion charges applicable for use of land for commercial purpose.

Category-D

Nursing homes, hospitals, diagnostic centres, clinic and dispensaries run on commercial lands and not covered by other categories]

Equal to conversion charges applicable for use of land for commercial purposes.

(6)

The rates of conversion charges recoverable from persons belonging to Scheduled Caste or Scheduled Tribes shall be half of those given in Schedule [III]

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

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(7)

[The conversion charges and penalty recoverable under these rules shall be based on the actual area of land held by the applicant and lands used for common purposes shall be excluded. Lands used for common purposes shall be deemed to have been surrendered to the local authority.]

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

(8)

Where an individual member of a Society of whom a plot is allotted by the said Society applies for conversion of his plot, the conversion charges at the rate prescribed in Schedule [III]

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

shall be chargeable for the actual area of land allotted to him by the Society.

(9)

[The rate of conversion charges recoverable from an applicant specified under proviso to rule 5(1) shall be as shown in column No. 4 of Schedule III:

Provided that where the applicant has deposited, before coming into force of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural land for residential and commercial purposes in Urban Areas) (Amendment) Rules, 1977 the amount of conversion charges according to these rules on the basis of his self-assessment and the amount deposited as a result of self-assessment is not then 80% of the amount assessed by the authorised officer under the thus existing proviso to rule 5(1). In such cases the rate shall be as shown in column No. 4 of Schedule II read with the deleted sub-rule 9 of rule 11.]

[Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

12.

Application of bye-laws etc. of the local bodies.

- All constructions on land so converted may be regularised under these rules provided these conform to the bye-laws of the Urban Improvement Trust, local authority or any other authority having jurisdiction to deal with the particular type of construction.

13.

Penalty.

- Penalty shall be levied in all cases of unauthorised use and conversion of agricultural land for [Residential or Commercial or Public Utility]

[As amended by G.S.R.45, Dated July 31, 1998, published in Rajpatra Part 4(ga), dated 7-8-1998, page 151(2), w.e.f. 7-8-1998]

purposes and the rate of penalty shall be as follows-

(a)

In cases in which the land has been so converted and use from prior to 20-8-1981, the penalty shall be equal to 5% of the conversion charges payable under these rules if no construction of any sort has been undertaken on the land, and 10% of the same if any construction has taken place.

(b)

[In case in which land has been so converted and used by way of construction after 20.8.81, the penalty shall be equal to 10% of the conversion charges payable under these rules if any construction has taken place [for residential purpose and 50% of the conversion charges payable under these rules if any construction has taken place for commercial purpose]

[Substituted by Substituted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

.

[x x x]

[Deleted by No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Rajasthan Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

14.

Crediting of amount of conversion charges and penalty etc.

- The entire amount realised on account of conversion charges and penalty shall be credited to the Government Account.

15.

Consequences of regularisation.

- With effect from the date of regularisation of the land, all Khatedari rights in respect of such land shall be deemed to have been surrendered to the Government. Therefore, no land revenue on such converted land shall be payable.

16.

Lease of Land.

- On conversion or regularisation as the case may be, the land shall be held on the basis of a lease in perpetuity. The terms and conditions of the lease shall be revisable by the Government after every [99 years]

[Substituted by G.S.R. 127, Dated 26-3-82; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 26-3-82, page 459.]

.

17.

[x x x]

[Deleted by No. F. 2(8) Revenue/9/90, Dated 3-3-92; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 4-3-92.]

18.

Realisation of arrears.

- Arrears of all charges realisable by the Government under the rules shall be recovered as arrears of land revenue.

19.

Breach of conditions and rules.

(1)

If at any time, it is found by the Collector that the land regularised for a residential purpose has been used for a commercial purpose, then the lessee shall be liable to pay conversion charges and penalty as prescribed in rules 11 and 13 for the conversion of land for commercial purposes. The charges paid for the conversion of land for a residential purpose shall be adjusted against the charges payable for the conversion of land for commercial purpose.

(2)

If at any time, it is found that the land regularised has been transferred in contravention of these rules, the Collector may resume the same. The lessee shall, however, be given three months time to remove the structure or building erected on the land if any and no compensation on this account shall be payable.

(3)

In case of any other breach of condition or rule by the lessee a penalty equal in amount to conversion charges paid by him or a sum upto Rs. 1,000/- whichever is higher, may be imposed on him by the Authorised Officer.

(4)

No action under Sub-rules (1), (2) and (3) shall be taken unless the lessee is given a reasonable opportunity of being heard against the action proposed.

20.

[x x x]

[Deleted by G.S.R. 97. Dated 10-11-1987.]

21.

[Functions of Revisory Authority.

[Added by No. S.O. 49, Dated 22-5-86.]

- The functions of the Revisory Authority shall be regulated by the rules as may be prescribed by the State Government.]

22.

Repeal and Savings.

- The Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential or Commercial Purposes in Urban Area) Rules, 1978 are hereby repealed:

Provided that such repeal shall not affect any order made, action taken effect and consequences of anything done or suffered thereunder or any right, title, privilege, obligations or liability already acquired, accrued or incurred thereunder or any enquiry conducted, verification made or proceedings taken in respect thereof.

[Schedule I]

[Substituted by G.S.R. 94. Dated 16-12-82; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 16-12-82. page 295-300.]

[See Rule 11(1)]

Category No. 1

Towns

1. Ajmer
2. Bikaner
3. Ganganagar
4. Jaipur
5. Udaipur
6. Kota
7. Jodhpur
8. [Alwar]

[Inserted by G.S.R. 83, dated 1-10-94; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I) dated 20-10-94, page (1).]

9. [Mt. Abu]

[Inserted by Inserted by G.S.R. 83, dated 1-10-94; published in Rajasthan Gazette Extraordinary Part 4(Ga) (I) dated 20-10-94, page (1).]

Category No. 2

1.[xxx]

[Deleted by G.S.R. 83, dated 1-10-94; published in Rajasthan Gazette Extraordinary Part 4(Ga) (I) dated 20-10-94, page (1).]

2. Beawar
3. Bharatpur
4. Bhilwara
5. Pali
6. Sikar

Category No. 3

1.[x x x]

[Deleted by G.S.R. 83, dated 1-10-94; published in Rajasthan Gazette Extraordinary Part 4(Ga) (I) dated 20-10-94, page (1).]

2. Amber
3. Banswara
4. Banner

5. Baran
6. Bundi
7. Chittorgarh
8. Chomu
9. Chum
10. Dausa
11. Dholpur
12. Fatehpur
13. Gangapur City
14. Hanumangarh
15. Hindaun
16. Jhunjhunu
17. Kisliangarh
18. Makarana
19. Nagaur
20. Nimbahera
21. Pilibanga
22. Rajsamand
23. Ramganj Mandi
24. Ratangarh
25. Sanganer
26. Sardar Sliahar
27. Sawai Madhopur
28. Sujangarh
29. Suratgarh
30. Tonk
- Category No. 4
1. Anupgarh
2. Abu Road
3. Bari
4. Balotra
5. Bhinmal
6. Bhadra
7. Bavana 8. Chirawa
8. Chirawa
9. Dungarpur
10. Deedwana
11. Dunargarh
12. Deeg
13. Jhalawar
14. Jalore
15. Jaisalmer
16. Jhalarpatan
17. Karauli
18. Kuchaman City
19. Khetri
20. Kesrishinghpura
21. Kotputli
22. Kekri
23. Khairthal
24. Laxmangarh

25. Ladrnun
26. Malpura
27. Merta City
28. Nawalgarh
29. Nathdwara
30. Nokha
31. Nohar
32. Niwai
33. Neem-ka-thana
34. Pratapgarh
35. Phalodi
36. Pilani
37. Padampur
38. Raising Nagar
39. Rajgarh (Churu)
40. Rawatsar
41. Sangaria
42. Sojat
43. Sri Karanpur
44. Sri Vijainagar (Ganganagar)
45. Sirohi
46. Sri Modhopur
47. Sardul Shahar
48. Sambhar
49. Vijay Nagar
- Category No. 5
1. Bali
2. Bissau
3. Bandikui
4. Bagar
5. Bhinder
6. Chaksu
7. Chaapar
8. Chabra
9. deshnok
10. Deoli
11. Deogarh
12. Gangapur
13. Gajsinghpur
14. Indergarh
15. Jobner
16. Jahajpur
17. Kaman
18. Kushalgarh
19. Khandela
20. Kherli
21. Lakheri
22. Mandawa
23. Manesar
24. Mukundgarh
25. Nawan

26. Pipar
27. Phulera
28. Pushkar
29. Pindwara
30. Parbatsar
31. Pokaran
32. Rajgarh (Alwar)
33. Ramgarh
34. Rajaldesar
35. Sagwara
36. Shahpura
37. Sunel
38. Shivganj
39. Sarwar
40. Salumber
41. Taranagar
42. Tijara
43. Todaraisingh
44. Todabhim
45. Udaipurwati
46. Uniara
47. Vidyavihar
48. All other Unclassified Municipal Towns, notified areas and
cantonment boards.
49. All Mandies

II

(See Rule 11(4))

Towns & Cities

Zones

Rates of Conversion Charges (in Rupees) per

Sq. Yd.

Concessional rates

Normal rates

1

2

3

4

Category I

I

16.00

24.00

II

11.20

18.00

III

08.00

12.00

IV

06.00

09.00

V

04.80

07.500

Category No.2

I

11.20

18.00

II

08.00

12.00

III

06.00

09.00

IV

04.80

07.50

Category No.3

I

10.00

15.00

II

07.50

11.00

III

04.80

07.50

Category No.4

I

07.50

11.00

II

04.80

07.50

Category No.5

I

04.50

07.00

Explanation. - I. The rates of conversion charges in respect of a periphery village shall be fifty per cent of the conversion charges applicable to the lowest zone of the town or city of which it is a periphery" village.

II. The rates of conversion charges in respect of a village which is situated outside the municipal limits but within the urbanisable limits shall be the same as applicable to the lowest Zone of the town or city.

III. The rates of conversion charges in respect, of a town which is situated within the distance indicated in rule 2 (i) shall be the same as are applicable to that municipal town under these Rules, and not the rates applicable to a periphery village.

(IV. The rates of conversion charges in respect of an Urban village shall be fifty" per cent, of the normal conversion charges for abadi and residential purposes as applicable to the lowest Zone of the town or city" of which it is an Urban village.]

[Added by G.S.R. 76. Dated 31-10-83; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 29-12-83. page 265.]

[Schedule III]

[Added by No. No. F. 2(8) Revenue/9/90Xi. Dated 23-4-97; published in Raj Gazette Extraordinary Part 4(C)(I), Dated 23-4-97.]

[See Rule II (4. 5, 6, 8 & 9)]

Towns & Cities

Zones

Rates of Conversion Charges (in Rupees) per Sq. Yd.

Normal rates

Rate in the matter of agreement to sell

1

2

3

4

Category No.I

I

50.00

100.00

II

40.00

80.00

III

25.00

40.00

IV

20.00

30.00

V

15.80

25.00

Category No.II

I

40.00

80.00

II

25.00

40.00

III

20.00

30.00

IV

IV

15.00

25.00

Category No.III

I

15.00

30.00

II

11.00

22.00

III

07.50

15.00

Category No.IV

I

11.00

22.00

II

07.50

15.00

Category No.V

I

07.00

14.00

Form 'A'

[See Rule 6(1)]

Application for permission to use agricultural land for Residential and Commercial Purposes in Urban Areas

To

The Authorised Officer,

Conversion of Agricultural Lands

.....

I hereby request that permission may kindly be granted to me in accordance with the provisions of Section 90-A on the Rajasthan Land Revenue Act, 1956 (Rajasthan Act

15 of 1956

) read with Rule 6 of the Rajasthan land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules. 1981, to use the agricultural land held by me. and described in detail below for the residential/commercial purpose Indicated below:

(1)

Particulars of the land for which permission to convert/regularise is being sought-

(a)

Name of Tehsil

(b)

Name of City, Towns or Village

(c)

Zone number (See rule 11)

(d)

Khasra Number

(e)

Area (in square yards)

(f)

Purpose for which the land was used in the course of the last three years

(i.e.....agricultural/residential/commercial).....

Year.....?.....

Purpose.....?.....

(2)

If the land already been used for a non-agricultural purpose, state the exact purpose and the month and year from which so used

(a) Purpose.....?....?.....

(b) Month.....

(c) Year.....

(3)

(Application to cases in which the applicant has an undisputed title to the land applied for)-

(a)

(For individual applicants only)

I have a clear and undisputed title to the land in question and a certified copy of the latest Jamabandi in respect of this land is enclosed in proof of the same.

(b)

(For Housing Co-operative Societies Only).

The applicant is Housing Co-operative Society and its Regularisation No. is.....An attested copy of the regularisation certificate is enclosed. The Society has a clear and undisputed title of the land in question and a certified copy of the latest Jamabandi in respect of this land is enclosed in proof of the same.

(c)

(For individual members of Housing Co-operative Societies only).

I am a member of the.....(Name of Society) Society, the regularisation number of which is The Society has a clear and undisputed title of the land applied for by me. and an attested copy of the letter of allotment issued by the Society is enclosed, alongwith an attested copy of the site plan of the plot. A certified copy of the latest Jamabandi relating to the land held by the Society and on which my plot is situated is also enclosed.

(4)

(In cases in which the applicant does not have a clear title to the land applied for).

I do not yet have a clear title on record to the land applied for but I am in possession of a valid agreement to shall in my favour (an attested copy of which is enclosed) and the exact nature of my title has been explained in the appended documents is required in Foot Note (d) below.

(5)

I/We have not yet got converted, or applied for conversion of any other land for a residential or commercial purpose in the Municipal area, except the land presently applied for. (Not applicable for Housing Co-operative Societies.)

Note - Please score out the portions in this form which are not applicable to you.

Verification

I.....hereby verify that the above statements and information are true and correct to the best of my knowledge and belief.

Signature of applicant

Full Name (in Capitals).....

Father's Name.....

Full Postal Address.....

Local Address.....

Please note the following carefully

This application should invariably be accompanied by the following documents-

(a)

An affidavit in the prescribed Form.

(b)

Certified copies of the revenue records mentioned above

(c)

A copy of the treasury challan in respect of the amount deposited by way of self-assessment. [See Rules 6(1)].

(d)

In cases in which the applicant does not hold a clear title to the land in question, certified copies of documents on the basis of which he claims title to the land and a narrative signed statement establishing the nature of his title.

Receipt

Received an application for permission to use agricultural land for residential/commercial purpose, alongwith the documents stated below-

1. Name of the applicant.

2. Documents attached with the application-

(a)

Affidavit in the prescribed Form:

(b)

Certified copies of revenue records:

(1)

(2) (3)

(c)

Copy of treasury challan for Rs.....

(d)

Certified copies of documents showing title:

(e)

Attested copy of registration certificate (for a housing co- operative society only):

(f)

Allotment Letter and Site Plan (for a member of a housing co- operative society only):

(g)

Any other documents (number).

Date:

Signature of Receipt Clerk

Authorised Officer

Conversion of Agricultural Land

Form 'B'

[See Rule 7]

Register of Applications for Allotment, Conversion and Regularisation of the use of Agricultural Land for Residential/Commercial Purpose.

Tehsil

District

S. No.

Name of applicant with parentage, occupation and postal address

Date of receipt of application

Particulars of the land of which conversion sought

Area (in sq. yads.)

Khasra No.

Name of Town/City/Village

Zone number

1

2

3

4

5

6

7

Particulars* of documents received with application

Date on which copy of application sent to Town Planning

Department/Local Body

Date on which recommendations received from Town Planning

Department/Local Body

8

9

10

Date of final order and whether application accepted or rejected

Date

Accepted

Rejected

11
12
13
Conversion charges, penalties and other dues
receivable
Conversion charges
Penalty
Land Price
Other
Total

14
15
16
17
18
Amount of Dues Deposited
Balance amount payable
Action taken to recover balance dues
Remarks

19
20
21
22

[Form 'C']

[Substituted by No. F. 2(8) Revenue/9/90, Dated 3-3-92; published in Rajasthan Gazette Extraordinary Part 4(Ga)(I), Dated 4-3-92.]

(See Rule 16)

Lease Deed

This Lease made on the day of between the Government of the State of Rajasthan (hereinafter called 'the Lessor', which expression shall, unless excluded by subject or context, include his successors in-office and permitted assigns of the one part and Shri.....S/o Shri.....resident of.....Tehsil.....District.....President/Secretary/allottee member of.....Housing Co-operative Society in his individual capacity as holder of the land (hereinafter called 'the Lessee', which expression shall, unless excluded by subject or context include his successors and assigns) of the other part.

Whereas the Lessee has applied to the Lessor for acquisition on urban lease rights in the land described in the schedule hereto:

And Whereas The Lessor has agreed to grant the Lease of the said land to the Lessee on the terms and conditions hereinafter appearing:

Now This Deed Witnesses as follows-

1. In pursuance of the aforesaid agreement and in consideration of a sum of Rs.....(Rupees.....only) to be paid before the execution of this deed (the receipt of which sum the Lessor hereby a knowledges) and of the covenants hereinafter contained, the Lessor hereby demises to the Lessee, the land detailed and described in the Schedule hereto and thereon shown with its boundaries coloured in the Schedule hereto and thereon shown with its boundaries coloured in red,(hereinafter referred to as the demised land) to held the same upto the Lessee from the.....day.....of.....

2. The parties hereto hereby mutually agree as follows-

(1)

That the Lessee shall during the continuance of tins lease, pay all rates, taxes and charges of every description now payable on hereinafter to become payable in respect of the demised land or the building erected thereupon by the lessees.

(2)

The lease shall be subject to the provisions contained in the Rajasthan Land Revenue (Allotment. Conversion and Regularisation of Agricultural Land for Residential or Commercial Purposes in Urban Areas) Rules, 1981.

(3)

That the Lessee will not. without the previous consent in writing of the Lesser use or permit the use of demised land for any purpose other than that for which it is leased out.

(4)

That the Lessee shall have to complete the construction of the building on the converted plot of land with in a period of five years form the date of issue of the lease deed failing which after five years till the date of completion of the construction a penalty is half per cent of the reserve price for the area per year shall be paid to the local authority concerned.

(5)

That if at any time any doubt or question arises between the parties hereto touching the interpretation meaning or effect of this deed or any clause thereof the same shall be referred to the arbitration of the Revenue Secretary to the Government of Rajasthan, Jaipur, whose decision thereon shall be final and binding on the parties.

In witness whereas the parties hereto have signed this deed on the day and year first above written.

Signed by for and on

Signed by the Lessee behalf of the Governor, the Lesser.

Signed by the Lessee

Signed by ?.....for and onbehalf of the Governor, the Lesser.

Witness:

Witness:

1.....

1.....

2.....

2.....

Affidavit

[See Rule 6(1)]

I.....son of.....of.....age.....resident of.....hereby state on oath/solemnly affirm as under:

1. That I am the khatedar tenant of the agricultural land bearing khasra number.....in village of Tehsil.....

Or

I am President/Secretary of the.....Housing Co-operative Society (Registration Number.) which has valid title on agricultural land bearing Khasra Number.....in village of Tehsil.

Or

I am a member of theHousing Co-operative Society (Registration Number) and hold plot number.....area.....in the Society's Scheme named.....

2. That I am entitled to apply for conversion of the above land and stand in genuine need for the same.

3. That the land, of which conversion is applied for is not subject to restrictions against conversion contained in Rule 4 and Rule 5 of the Rajasthan Land Revenue (Allotment. Conversion and Regularisation of Agricultural Land for Residential. Commercial and Public Utility Purposes in Urban Areas) Rules, 1981.

That no material fact affecting conversion has been suppressed. So help me God.

Deponent

Sworn before me by on.....at.....

Judge/Magistrate/Notary Public/Oath Commissioner.

Notifications.

Notification No. F. 6(87) Revenue/Gr. 4/11/67, dated December 26, 1981, published in Rajasthan Government Gazette, Extraordinary Part TV-C(b), Page 321, dated 26-12-1981.] G.S.R. 93. - In exercise of the powers conferred by rule 2(2) the Rajasthan Land Revenue (Allotment, Conversion land Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, State Government hereby empowers all Sub-Divisional Officer (Land conversion) to be Authorised Officers in cases in which the charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of unauthorised occupation and conversion of Government land the market price of the land, as the case may be, does not exceed Rs. 10,000/- and the Collectors and Additional Collectors

(Land conversion in other cases.

[Notification No. F. 6(87) Revenue/Gr. 4/81-41, Dated 25-5-1982, Published in Rajasthan Government Gazette, Extraordinary 4(Ga) (II), Page 95, dated 28-5-1982] S. O. 44. - In exercise of the powers conferred by rule 2(a) of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the Assistant Collector, Banswara to be Authorised Officer for Banswara District in cases in which the Conversion charges together with penalty as prescribed in these rules or in cases relating to the regularisation of un-authorised occupation and conversion of Government Land, the Market price of the land, as the case may be, does not exceed Rs. 10,000/- and the Collector Banswara in all cases.

[Notification No. F. 6(44) Revenue Gr. 4/83-45, dated June 24, 1983, Published in Rajasthan Government Gazette, Part IV-C, P-III, dated 24-6-1983] S.O. 55. - In exercise of the powers conferred by rule 2(a) of the Rajasthan Land Revenue Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the Sub-Divisional Officer, Dholpur to be the Authorised Officer in cases in which the Conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be, does not exceed upto Rs. 10,000/- and the Collector in other cases.

[Notification No. F. 6(81) Revenue/Gr. 183/83, dated August 5, 1983. Published in Rajasthan Government Gazette, Part 4(c), Page 534, dated 25-8-1983.] G.S. R. 104. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Area) Rules, 1981 the State Government hereby empowers the following Sub-Divisional Officers/Assistant Collector in districts specified against each to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be does not exceed Rs. 10,000/- and the Collectors in other cases

S.No.

Officer

District

1

Sub-Divisional Officer,
Jodhpur.

2

Sub-Divisional Officer, Dungarpur
Dungarpur.

3

Sub-Divisional Officer, Ganganagar
Ganganagar

4

Assistant Collector & Executive Magistrate, Bikaner
Bikaner.

5

Sub-Divisional Officer, Nagaur
Nagaur.

6

Sub-Divisional Officer, Pali
Pali.

7

Sub-Divisional Officer, Jhunjhunu
Jhunjhunu.

8

Sub-Divisional Officer, Ahwar
Ahwar.

9

Sub-Divisional Officer, Kota

Kota.

10

Sub-Divisional Officer, Bundi

Bundi.

11

Sub-Divisional Officer, Sirohi

Sirohi.

12

Sub-Divisional Officer, Bharatpur

Bharatpur.

13

Sub-Divisional Officer, Chittorgarh

Chittorgarh

14

Sub-Divisional Officer, Sikar

Sikar.

[Notification No. F. 6(81) Revenue/Gr. IV 83-86, dated 1-9-1983 Published in Rajasthan Government Gazette, 4 (Ga) (II), Page 95, dated 15-9-1983.] S. O. 82. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the following Sub-Divisional Officers/Assistant Collector in district specified against each to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be does not exceed Rs. 10,000/- and the Collectors in other cases:

S.No.

Officer

District.

1

Sub-Divisional Officer, Udaipur

Udaipur.

2

Sub-Divisional Officer, Sawai Madhopur

Sawai Madhopur.

3

Assistant Collector and Executive Magistrate, Barmer

Barmer.

4

Sub-Divisional Officer, Mt. Abu

Sirohi.

[Notification No. F 6(81) Revenue Gr. IV 83-87, dated 7-9-1983, Published in Rajasthan Government Gazette, Part I-B. Page 551. dated 13-10-1983]. In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981 the State Government hereby hereby empowers the following Sub-Divisional Officers in Sub-Divisions of Ganganagar district specified against each to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to regularisation of un-authorised occupation and conversion of Government land, the market price of the case may be, does not exceed Rs. 10,000/- and the Collector in the other cases.

S.No.

Officer

Sub-Division.

1

Sub-Divisional Officer, Ganganagar

Ganganagar.

2

Sub-Divisional Officer, Raisinghnagar

Raisinghnagar.

3

Sub-Divisional Officer, Srikarnapur

Srikarnapur.

Notification No. F 6(81) Revenue Gr. 4/83-88, dated 7-9-1983, Published in Rajasthan Government Gazette, Part IB, Page, 551, dated 13-10-1983.] - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the Additional District Collector (Administration), Ganganagar to be the Authorised Officer in cases in which the conversion Charges together with penalty as prescribed in these rules, or in cases relating to the regulation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be, exceeding Rs. 10,000/-.

[Notification No. F. 6 (81) Rev/r 18/93, dated September 24, 1983, Published in Rajasthan Government Gazette, Part 1-13, page 570, dated 27-10-1983.] - In exercise of the powers conferred by clause (a) of sub rule (i) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules 1981, the State Government hereby empowers the Additional Collector Pali to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to tin regularisation of Unauthorised occupation and conversion of Government land, the market price of the land, as the case may be, exceeding Rs. 10.000/-.

[Notification No. F. 6 (81) Revenue /Gr. 4/83-8, dated, January 20. 1984, Published in R.G.Gazette, Part IV-C, page 823, dated 9-2-1984.] G.S.R. 185. - In exercise of the powers conferred by clause (a) of Sub-rule (1) of Rule (2) of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the following Sub-Divisional Officers in districts specified against each to be the Authorised Officer in cases in which the Conversion Charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of unauthorised occupation and conversion of Government land, the market price of the land, as the case may be does not exceed Rs. 10.000/- and the Collectors in other cases.

S.No.

Officer

District.

1

Sub-Divisional Officer, Churu

Churu.

2

Sub-Divisional Officer, Jhunjhunu

Jhunjhunu

3

Sub-Divisional Officer, Jalore

Jalore.

[Notification No. F 6(81) Revenue Gr. 4/83, dated March 1, 1984, Published in Rajasthan Government Gazette, Extraordinary Part IV-C, (ii). Page 227, dated 3-3-1984]. S. O. 159. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment. Conversion and Regulation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers the following officers in districts specified against each to be the authorised officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to regularisation of unauthorised occupation and conversion of Government land, the market price of the land, as the case may be, does not exceed Rs. 10,000/ and the

Collector in the other cases.

S.No.

Officer

District

1

Assistant Collector and Executive Magistrate (First) Tonk

Tonk

2

Deputy Collector, Jagir, Ganganagar

Ganganagar.

Notification No. F. 6 (81) Revenue Gr. 4/84-406, dated, November 16. 1984, Published in Rajasthan Government Gazette Extraordinary Part IV-C (II), Page 213. Dated 26-11-1984.] S. O. 110. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the partial modification of this Department Notification No. F 6 (81) Revenue/Gr. IV/83/89, dated 7 September, 1983, the State Government hereby empowers the Sub-Divisional Officer, Bundi in place of Assistant Collector and Executive Magistrate, Bundi to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be, does not exceed Rs. 10,000/-and the Collector in other cases.

Notification No. F. 6 (81) Revenue Gr. 4/83-49, dated 12-12-1984, Published in Rajasthan Government Gazette Part IV-C, Page 141=1985 RSCS 50., dated 3-1-1985.] S.O. 129. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule (2) of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers (he following Sub-Divisional Officers within their jurisdiction to be authorised officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of unauthorised occupation and conversion of Government land, the market price of the land, as the case may be, does not exceed Rs. 10,000/ and the Collector in other cases:

S.No.

Officer

District.

1

Sub-Divisional Officer, Ajmer

Ajmer.

2

Sub-Divisional Officer, Bhihvara

Bhilwara.

3

Sub-Divisional Officer, Jaisalmer

Jaisalmer.

4

Sub-Divisional Officer, Kota

Kota.

5

Sub-Divisional Officer, Tonk

Tonk.

Notification No. F 6(81) Revenue /83/10, dated, January 25, 1985, Published in Rajasthan Government Gazette Part 4-C, Pages 408-9, dated, 14-2-1985.] G.S.R. 87. - In exercise of the powers conferred by clause (a) of Sub-rule (1) of Rule (2) of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas in Rules, 1981, the State Government hereby empowers the Assistant Collector and Executive Magistrate, Jalore to be the Authorised Officer in cases which the Conversion Charges together with penalty as prescribed in these rules, or in the cases relating to the regularisation of unauthorised occupation and

conversion of Government Land, the market price of the land, as the case may be, does not exceed Rs. 10,000/- and the Collector in other cases.

Notification No. F. 6(87) Revenue/Gr. 4181/56, G.S.R. 92, December 26, 1981, Published in Rajasthan Government Gazette, Extraordinary 4 (Ga) (I) PaGE 321 to 322, dated 26-12-1981]. - In pursuance of the provisions of section 42A of the Rajasthan Tenancy Act, 1955 (Rajasthan Act 3 of 1955), the State Government hereby authorises the Sub-Divisional Officers (Land Conversion) to declare to be valid any sale, gift or bequeath in respect of land used for a residential or commercial purposes in cases where the same can be regularised under the Rajasthan Land Revenue (Allotment Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981.

Notification No. F. 1(1) Revenue/LC/92, dated, 31-5-1994, Published, in Rajasthan Government Gazette, Extraordinary Part 4(G) (II), dated, 26-7-1994.] S.O. 145. - In exercise of the powers conferred by clause (a) of sub-rule (1) of the Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981, the State Government hereby empowers Assistant Collector, Bhilwara to be the Authorised Officer in cases in which the conversion charges together with penalty as prescribed in these rules, or in cases relating to the regularisation of un-authorised occupation and conversion of Government land, the market price of the land, as the case may be, does not exceed Rs. 10,000/- in their respective Zone and the Collectors in other cases.

Notification No. F. 2(8) Revenue/L.C./90/2, dated, 23-4-1997, Published in Rajasthan Government Gazette, Extraordinary Part 4-C(i), Page 27, dated 23-4-97.] The Rajasthan Land Revenue (Allotment, Conversion and Regulation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981 - Rule 2(1)(a) - All S.D. Os., S.D. Os. 9 Land Conversion), all such Assistant Collectors & other Officers already empowered to be authorised officers with their jurisdiction-Empowered.

G.S.R. 20. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purpose-in Urban Areas) Rules, 1981, and in supersession of Notification No. F. 6(8) Revenue Gr. 4/81/57, Dated 26-12-81 the State Government hereby empowers all Sub-divisional Officers, Sub-Divisional Officers (Land Conversion), all such Assistant Collectors and other Officers already empowered to be authorised officers with their jurisdiction irrespective of limit of amount of land conversion, penalty and cost of Government Land.

Notification No. F. 1(3) Revenue 9/99, dated 18-1-1999, Published in Rajasthan Government Gazette, Extraordinary Part 4 (G)(II), dated 29-1-1999, page 437]S.O. 372. - In exercise of the powers conferred by clause (a) of sub-rule (1) of Rule 2 of the Rajasthan Land Revenue (Allotment, Conversion and Regularisation of Agricultural Land for Residential and Commercial Purposes in Urban Areas) Rules, 1981 the State Government hereby empowers all the Assistant Collectors & Executive Magistrates to be the authorised Officers within their respective Jurisdiction.

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